MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This Memorandum of Agreement (MOA) is made and entered into by:

The **PARTIDO STATE UNIVERSITY,** a state university with campus address at San Juan Bautista St., Goa, Camarines Sur, hereinafter referred to as **PSU**, represented herein by its President, **DR. RAUL G. BRADECINA**;

-and-

The **WORLDWIDE FUND FOR NATURE-PHILIPPINES** (hereinafter referred to as **WWF-Philippines**), a non-profit, non-stock, non-government organization (NGO) duly organized under the laws of the Republic of the Philippines with office address at the 4th Floor, JBD Plaza, #65, Mindanao Avenue, Barangay Bagong Pag-asa, Quezon City, 1105 represented herein by its Executive Director **KATHERINE CUSTODIO;**

WITNESSETH, That:

WHEREAS, PSU, is a state university committed to provide quality instruction in the arts, philosophy, sciences, technology and other relevant courses and create a competitive advantage in research, extension and production services for socio-economic upliftment of the Bicolanos;

WHEREAS, PSU is also a state-funded university known for its participation in many major international, national, and local research and development researches related to ecotourism management, fishery resource management, fishery resource valuation, and many coastal resources management undertakings;

WHEREAS, **WWF-Philippines** is a non-stock, non-profit corporation that works to improve Filipino lives by developing solutions to climate change, providing sustainable livelihood, and conserving the country's richest land and marine habitats;

WHEREAS, **WWF-Philippines** is tapping the technical experts of PSU, to participate in the Project under a mutual belief in the objectives of the Project and to establish a basis of cooperation and collaboration between the Parties upon the terms as contained herein.

NOW THEREFORE, for in consideration of the foregoing premises and covenants and subject to the terms and conditions hereinafter set forth and within the limits of the laws governing their respective existence the parties by these presents, do hereby bind themselves to **AGREE** and **ADOPT** this Memorandum of Agreement.

ARTICLE 1.
DESCRIPTION OF THE COLLABORATION AND OBJECTIVES OF THE PROJECT

1.1. This MOU shall cover Research, Development and Extension (RD&E) activities to be jointly spearheaded by the parties through the institutional and funding facilitation of the WWF-Philippines and the technical service provision of Partido State University, within the time duration specified in Article 3.

1.2. Initially, the parties agree to implement the project entitled **"CATCHFISH: A Collaborative ICT-Based Tools for an Optimize Fishing Repository and Catch Efficiency Towards a Sustainable Use and Development,"** with the following as the project components: (a) *Study 1:* Implementation of RDBMS in Establishing a Digital Repository for Community Fisheries

Information and Regional Knowledge; (b) *Study 2:* Design and Development of CATCHFISH Front-end Incorporating the Community Participation Modules; and (c) *Study 3:* Empowering Communities through CATCHFISH Evaluation, Training and Technology Transfer. This project aims to develop an innovative digital repository that will be able to accurately record information about the fisheries community, fishing resources, and fish catch along the coastline in Lagonoy Gulf (*see Attachment A*).

1.2. The deliverables under this initial project for **CATCHFISH** are the following:

a. Digital Repository for the CATCHFISH repository covering all the Fish Catch and Fisheries communities' comprehensive resources and information;
b. Information system of CATCHFISH as a collaborative tool for fishing resources and catch efficiency integrating functionalities such as a data entry page for content creation, knowledge retrieval features, social network services, and other viewable elements;
c. Training and capability-building activities with the Fisher folks, communities, and other stakeholders of the system; and have
d. Formal turnover of the developed CATCHFISH system to the stakeholder.

1.3. Under this MOA, other research and technical collaborations that will follow after this initial project shall be covered by separate proposals and contracts or terms of reference.

ARTICLE 2.
OBLIGATIONS OF THE PARTIES

The Parties, subject to the terms of this Memorandum of Agreement and the laws, rules, regulations and policies from time to time in force in each of the Parties, will collaborate in the implementation of the research project with the following responsibilities:

2.1. The WWF-Philippines shall:

a. Provide the research fund requirement to defray for the direct and indirect operational expenses of the research project;
b. Directly disburse the funds for the research project implementation;
c. Through its project staff, provide logistical and administrative assistance and support for the research team from the university; and
d. Provide access to the baseline data of fish catch and fish resources and to previous assessment reports and publications as references for design and development of the information system.

2.2. The PSU shall:

a. Assign College of Arts and Sciences-Institute of Information Technology to appoint as the project's technical service providers specialists and experts on the development of the database and information system;
b. Provide counterpart support through their Research and Development (R&D) mandates as state-funded academic institution;
c. Conduct the field surveys, sample data collection and analyses that will employ scientifically acceptable protocols and standards and compliant to existing environmental laws and research ethics;
d. Develop the CATCHFISH database repository and information system; and temporarily host the initial deployment period attached University domain;
e. Submit reports within the specified duration unless otherwise extended for justifiable ground; and

f. Train the end-user and turn-over the system to WWF-Philippines, for the use of the stakeholders, as identified in separate agreement.

ARTICLE 3.
PAYMENT OF FEES

3.1. For the project period of twelve (12) months, WWF-Philippines has dedicated the amount of Six Hundred, Eighty-One Thousand, and Six Hundred Philippine Pesos (PHP 681,600.00). The breakdown of the Project budget is shown in Annex 'A". Funds will be paid to PSU as follows:

1. PHP 204,480.00 (30%) representing the initial release of the total budgetary requirements of the Project upon execution of the MOA.
2. PHP 204,480.00 (30%) representing the initial release of the total budgetary requirements of the Project upon the acceptance of deliverables by WWF-Philippines, particularly upon the presentation of the prototype version of the database and information system and upon submission of the first Project Report, audited financial report, and evaluation of accomplishment for the first tranche.
3. PHP 272,640.00 (40%0 representing the final release of the total budgetary requirement of the Project upon the acceptance of deliverables by WWF-Philippines. Particularly upon the submission of the final version of the database and information system, the final Project Report, audited financial report, and evaluation of the accomplishment for the second tranche.

3.2. Expenditures and liquidation shall be subjected to external auditing by a certified public accountant.

ARTICLE 4.
EFFECTIVITY, IP OWNERSHIP, DISPUTE RESOLUTION, DATA PRIVACY AND RELATIONSHIP OF PARTIES

41 **Term and Pretermination.** This MOA shall take effect upon its signing by the Parties and shall remain in force in ONE (1) YEAR unless earlier revised amended, modified or terminated upon such grounds mutually agreed by the parties herein.

4.2. **Intellectual Property Rights.** PSU and WWF-Philippines have equal ownership over the database and information system, PSU, as the creator of the database and information system, is provided copyright of the work. WWF-Philippines shall be acknowledged in recognition the moral rights of their work.

WWF-Philippines has current access to the fisheries and fisheries recourses data needed to populate the database and information system. However, the primary owners of the data, the members of the Tuna Fisherfolks Association of Lagonoy Gulf, have the authority to grant or deny WWF-Philippines access to share said data for reproduction or distribution purposes. WWF-Philippines shall request authorization from the primary owners of the data before sharing said data to PSU, pursuant to provisions under the Data Privacy Act (Republic Act No. 110173).

Any revision to the intellectual property rights on the database and information system and any derivative therein shall be valid and effective in a written instrument signed by the authorized representatives of all Parties, pursuant to provisions under the Intellectual Property Code of the Philippines (Republic Act No. 8923) and the Philippine Technology Transfer Act (Republic Act No, 10055).

4.3. **Alternative Dispute Resolution.** Disputes regarding the application of the provisions under this agreement will be resolved through any of the modes of alternative dispute resolution rather than through the traditional court system.

4.4. **Exclusive jurisdiction.** Should it be necessary, in any case of controversy arising from this MOA, Parties agree to elevate and lodge the same before the regular court having jurisdiction over Partido State University, Goa, Camarines Sur and over the dispute concerned.

4.5 **Data Privacy.** Parties, in the course of the activities pursuant to this MOA generate personal data and other information, the same shall be governed by the provision of the Data Privacy Act.

4.6. **Relationship between the Parties and Liability**. Nothing in this MOA shall be construed as establishing or creating between the Parties the relationship of a principal-agent, partner, joint-venture partner, or representative of each other; consequently, neither Party shall represent to third parties that it is acting on behalf of or in the representation of each other in the observance of this MOA.

ARTICLE 5.
REVISIONS, MODIFICATION AND AMMENDMENTS

5.1. This MOA maybe revised, modified or amended in whole or in part, by consensus of the Parties. Any revision, modification or amendment agreed upon by the Parties shall be in writing and shall form part of this MOA. Such revision, modification and amendment shall come into effect on such date as may be determined by the Parties.

5.2. Any revision, modification or amendment shall not affect the rights and obligations arising from this MOA prior or up to the date of such revision, modification or amendment.

IN WITNESS WHEREOF, the parties have hereunto set their hands this _____ day of _____at _____.

SIGNED BY

For and on behalf of
PARTIDO STATE UNIVERSITY

RAUL G. BRADECINA, Ph.D.
SUC President III

SIGNED BY

For and on behalf of
WORLD WIDE FUND FOR NATURE-PHILIPPINES

KATHERINE CUSTODIO
Executive Director

In the presence of:

HAZEL JEAN C. PESINO
Project Leader

MARRIETTA R. CALACAL

JONI NIEL B CAPUCAO
Dean, College of Arts & Sciences

ACKNOWLEDGMENT

BEFORE ME, A Notary Public for and in _____, Philippines this FEB 0 2 2024 day of _____ 2023, personally appeared the following persons:

Name	Competent Evidence of Identity	Date and place of issue
RAUL G. BRADECINA, PhD	P 7648090B	SEPT. 21, 2021 / DFA LEGASPI
KATHERINE CUSTODIO	P9471278B	MARCH 31, 2032 / DFA MANILA

Known to me to be the same persons who executed the foregoing Memorandum of Understanding, consisting of five (5) pages, including this page wherein the acknowledgment are written, all pages signed by both parties and their instrument witnesses and they acknowledged to me the same in their free and voluntary act and deed and that of the institutions they represent, respectively.

WITNESS MY HAND AND NOTARIAL SEAL, on the date, year and place first above Written.

Doc. No. 302;
Page No. 62;
Book No. 1;
Series of 2024;

ATTY. ROSALEO T. RODRIGUEZ JR., CPA
Notary Public for and in the Province of Camarines Sur
Notarial Commission No. 2023-26, Ending December 31, 2024
Roll No. 81502
IBP No. 307964/399841 JAN. 4. 2024
PTR No. 5052732 MTO SAN JOSE, CAM. SUR
MCLE Compliance No. VII-000-XXX
San Juan Bautista Street, Goa, Camarines Sur